CONFIDENTIAL
Enron Corp.
Case No. EC-2002-01038
Doc No. EC263CF1C
Date: 01/15/2003
ENRON CORP. - PRODUCED PURSUANT TO FERC SUBPOENA.
SUBJECT TO PROTECTIVE ORDER. CONFIDENTIAL TREATMENT REQUESTED.
CONFIDENTIAL - SUBJECT TO PROTECTIVE ORDER

From: Sanders, Richard B. <b..sanders@enron.com>
Sent: Tue, 11 Sep 2001 05:34:21 -0700 (PDT)
To: Champion, John <john.champion@enron.com>, Evans, Mark (London Legal)
Cc: T Paul Johnson (Legal), Simons, Paul <paul.simons@enron.com>, Nissan, Limor <limor.nissan@enron.com>, hmccombs@mayerbrown.com, cwoods@mayerbrown.com, legal <.t@enron.com>
Subject: RE: Longview

I spoke to Rick McCombs at Mayer Brown this morning and he informed me that he is in trial all week and unavailable for a call today. We agreed to a 7am central (1pm London and 8am New York) call on Thurs. to go over the answer and any other pending items. He promised a draft answer by 3 pm central on Wed afternoon. Hopefully, Paul will be well by then. I will set up a call-in number for the conference..

-----Original Message-----
From: Sanders, Richard B.
Sent: Tuesday, September 11, 2001 6:18 AM
To: Champion, John; Evans, Mark (London Legal)
Cc: T Paul Johnson (Legal); Simons, Paul; Nissan, Limor
Subject: RE: Longview

I am trying to set up a conf. call today at 10:30 central to speak to the Chicago attys. Andy is not involved in this case.

-----Original Message-----
From: Champion, John
Sent: Tuesday, September 11, 2001 5:36 AM
To: Evans, Mark (London Legal)
Cc: Sanders, Richard B.; Edison, Andrew; T Paul Johnson (Legal); Simons, Paul; Nissan, Limor
Subject: RE: Longview

Mark, fyi
Paul J is away sick but asked me to deal with this. I have also discussed with Paul S. Conference call planned for 2pm today with Andy Edison to discuss this (and Kemper).

-----Original Message-----
From: Evans, Mark (London Legal)
Sent: 11 September 2001 09:45
To: T Paul Johnson (Legal); Nissan, Limor; Simons, Paul
Cc: Sanders, Richard B.; Edison, Andrew

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ENRON-972641783858

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Subject: RE: Longview

Let's keep the pressure up by all means but I understand that an extension of this period is not hard to come by.

I assume you're talking about that with Andy, Paul J.
J. Mark Evans
Enron Europe Legal Department
direct tel: 44 207 783 5424
direct fax: 44 207 783 8287
email: mark.evans@enron.com
-----Original Message-----
From: T Paul Johnson (Legal)
Sent: 10 September 2001 11:09
To: 'Woods, Craig A.'; Nissan, Limor; McCombs, Hugh R.; Forrester, J. Paul
Cc: Raver, Carrie Marie ; Gamboa, Armando M.; Hahm, David ; Montz, Alex P.; Stoll, J. Robert ; Durkin, Thomas M.; Simons, Paul; Evans, Mark (London Legal); Sanders, Richard B.; Edison, Andrew
Subject: RE: Longview
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REQUEST FOR LEGAL ADVICE

Thank you for the written advice. Obviously prospects of success assessed at "[no] more than 50%..." (ie. definitely less than 50%) is depressing, given initial expectations. We now need to maximise our bargaining power for acquisition of the smelter through the litigation which McCook have forced on us.

We look forward to receiving the draft Defence and Counterclaim for comments/approval. We will need this fairly urgently, since the 20 day period for service expires next Monday, 17 Sept 2001 (according to my calculations - please confirm). Can you please ensure that they are sent to all the copy parties on the email (now including Houston litigation dept). Thank you.

Paul Johnson
Enron legal dept
-----Original Message-----
From: Woods, Craig A. [mailto:cwoods@mayerbrown.com]
Sent: 06 September 2001 16:58
To: Groves, Robert; Heffron, Kevin; T Paul Johnson (Legal); McKey, Christopher; Michaud, Jean; Nissan, Limor
Cc: Raver, Carrie Marie ; Gamboa, Armando M.; Hahm, David ; McCombs, Hugh R.; Montz, Alex P.; Stoll, J. Robert ; Forrester, J. Paul ; Durkin, Thomas M.
Subject: RE: Longview

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All: Attached is our follow-up memorandum regarding the merits of Enron's claim to enforce the Tolling Agreement against Longview. Please feel free to contact either Rick or me if you have any questions.

Craig A. Woods
Mayer, Brown & Platt
190 S. LaSalle Street
Chicago, IL 60603
(312) 701-8536 ph.
(312) 706-8697 fax
cwoods@mayerbrown.com

<<Merits_Memo.doc>>

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by e-mail reply and please delete this message from your computer.
Thank you. Mayer, Brown and Platt.

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